

confer on opponents any absolute right to have all objections they raised at first instance discussed. In this case, the opposition division had allowed the opponent's opposition. Given the main purpose of appeal proceedings, the chief effect of the patent proprietor's appeal was that the contested decision would be reviewed in light of the objections on which it was based. Other admissible objections before the opposition division would have to be expressly raised in the reply to the appeal. If the objections raised at the oral proceedings on appeal had been admitted, the patent proprietor would not have had any opportunity to prepare for this. Such an approach would be at odds with both the principle of procedural economy and the right to a fair hearing.

f) Change of representative

In T 1904/16 the board considered that the belated submissions (new evidence and new line of argument concerning public availability of D16) were not justified by the change of representative shortly before the oral proceedings. It recalled that a change of representative was a fact which belonged to the sphere of the party affected and, being extraneous to the proceedings, could not influence the decision whether a procedural action had been performed in time. On the contrary, a new representative was bound by the procedural actions performed by their predecessor and continued the proceedings from the point reached when they took over (see also T 1585/05). The board concluded that a change of representative as such was not a sufficient justification for late filings (see Case Law of the Boards of Appeal, 9th ed. 2019, V.A.4.8.2) and – under the circumstances in the case in hand, where the issue to be overcome had been raised at the outset – certainly not a cogent reason within the meaning of Art. 13(2) RPBA 2020.

g) Further illustration of the technical teaching by means of photographs

In T 100/18 the appellant (patent proprietor) produced photographs at the oral proceedings with a view to using them for illustrative purposes. The board, however, found that the wish to make additional use of photographs to illustrate the teaching already disclosed by drawings in the patent and in the prior art prior was not an exceptional circumstance within the meaning of Art. 13(2) RPBA 2020.

h) Translation

In T 917/18 the appellant (opponent) filed a full (machine) translation of D5 only at the oral proceedings. The board pointed out that the alleged prima facie relevance of this translation could not establish exceptional circumstances. The potential relevance of the content of D5 had become apparent at the latest from the respondent's reply to the grounds of appeal. Moreover, the appellant's interest in introducing the document into the proceedings had to be balanced with the procedural difficulty for the respondent and the board of reacting to the new information in the document.

i) Prima facie relevance

In T 187/18 the board first noted that the appellant's (opponent's) new line of attack against claim 1 based on a new combination of documents was a change to its case. It then

recalled that, according to Art. 13(2) RPBA 2020, exceptional circumstances justified by cogent reasons were required and that therefore alleged prima facie relevance was **not per se a consideration**. Since the appellant did not identify any special reasons for the amendment to its case, the board did not admit this new line of attack into the proceedings. See also T 917/18 (summarised in chapter V.A.4.5.8h))

4.5.9 Discretion under Article 13(2) RPBA 2020 – principles

Even if the board accepts a party's argument that the circumstances are exceptional, it is still at the board's discretion whether to admit the request into the appeal proceedings (T 709/16).

In numerous decisions, the boards have, in line with the principles set out in the explanatory remarks on Art. 13(2) RPBA 2020 in CA/3/19, pointed out that, at the third level of the convergent approach, the board may, in the exercise of its discretion under Art. 13(2) RPBA 2020, also rely on criteria applicable at the second level of the convergent approach, i.e. those set out in Art. 13(1) RPBA 2020 (see e.g. T 989/15, T 584/17, T 954/17, T 752/16, T 764/16, T 709/16, T 995/18). According to T 2429/17, at the third level of the convergent approach, the board may also rely on criteria applicable at the second and first levels of the convergent approach, i.e. those set out in Art. 13(1) and Art. 12(4) to (6) RPBA 2020.

Some decisions rely on criteria mentioned in Art. 13(1) RPBA 2020 without referring to this provision; see e.g. T 1609/16, in which the main request was considered to clearly address the outstanding issues and did not introduce any new subject-matter or raise new objections; see also T 1421/20, in which the criteria applied were linked to considerations of state of proceedings and procedural economy.

As outlined above (see chapter V.A.4.5.1 "Principles"), in some decisions the boards assessed the requirement of exceptional circumstances under Art. 13(2) RPBA 2020 and the criteria for the exercise of discretion in one step. In T 1904/16, for instance, the board considered there to be exceptional circumstances in view of, inter alia, the complexity of the new-subject-matter submitted, the reasons for the amendment, the current state of the proceedings and the need for procedural economy. See also T 1294/16, relying on, inter alia, considerations of procedural economy to assess whether there were exceptional circumstances.

4.5.10 Criteria for discretion applied to new requests

- a) Amendments that prima facie overcome the issues raised and do not give rise to new objections – admitted

As noted in T 1107/16, according to the explanatory remarks on Art. 13(1) RPBA 2020, the onus is on the appellant to demonstrate both why the amendment overcomes the issues raised by the board and why the amendment, prima facie, does not give rise to new objections.

In ex parte case T.1609/16 the board noted that the main request had manifestly been filed in reply to new clarity objections raised in its preliminary opinion. Moreover, the amendments to the original claims were straightforward, clearly addressed the outstanding issues in a manner already contemplated in the board's written opinion, and did not introduce any new subject-matter or raise new objections requiring further consideration. Hence the board exercised its discretion under Art. 13(2) RPBA 2020 and decided to admit the main request into the appeal proceedings.

Similarly, in the ex parte case T.1278/18, the new request (filed after oral proceedings had been arranged) comprised amendments made in response to objections under Art. 84 and R. 29(7) EPC 1973 and Art. 123(2) EPC raised for the first time in the board's communication pursuant to Art. 15(1) RPBA 2020. Moreover, the independent claims of the new request differed from those of the main request, on which the appealed decision was based, essentially by the added limitations which had already been introduced in the first auxiliary request filed with the statement of grounds of appeal with the aim of overcoming all objections of lack of novelty raised in the appealed decision. The board considered that they could be regarded as an appropriate reaction to the appealed decision (Art. 12(4) RPBA 2007). It was also satisfied that the amendments to the claims were supported by the information in the application documents as originally filed, as indicated by the appellant, and concluded that the amendments to the claims clearly overcame all outstanding objections without introducing new issues.

For further cases where the boards examined these criteria and were satisfied that they were fulfilled, see e.g. T.1107/16, T.1338/16, T.545/18.

- b) Amendments that do not prima facie overcome the issues raised and/or give rise to new objections – not admitted

In T.752/16 the board held that the reasons given by the respondent (patent proprietor) for filing new auxiliary requests after notification of the summons anyway did not amount to exceptional circumstances within the meaning of Art. 13(2) RPBA 2020. Furthermore, the board held that the amendments gave rise to new objections. It was not convinced by the appellant's interpretation of the newly filed auxiliary requests. The features added to the method claim instead gave rise to new objections owing to a reference to the processed product, which was not at issue in the proceedings. The amendments were thus detrimental to procedural economy (Art. 13(1) RPBA 2020).

In ex parte case T.709/16 the board exercised its discretion under Art. 13(2) RPBA 2020 in view of the suitability of the amendment in auxiliary request I to resolve the issue of lack of inventive step raised by the board. However, the amendment was not suitable to resolve this issue as it was only meant to clarify a certain feature and the inventive-step objection against the main request had already been based on the understanding this led to.

For further cases where the new requests were not admitted because, among other things, they did not (prima facie) overcome the issues raised, see T.2429/17 (ex parte, clarity objection), T.2692/18 (inter partes, inventive step objection), T.884/18 (inter partes, issue of priority), T.2271/18 (ex parte, clarity objection). For further cases in which the new

requests gave rise to new objections, see e.g. **T. 995/18** (inter partes, new objection under Art. 123(2) EPC), **T. 2271/18** (ex parte, clarity objection).

- c) Amendments and resulting subject-matter not surprising for the opposing party – request admitted

In **T. 1482/17** the board found that the amendments (made in direct response to an argument first put forward at the oral proceedings and so justified by exceptional circumstances) amounted to an elaboration on the gist of the invention. In its view, both the amendments and the resulting subject-matter were technically straightforward and did not entail unexpected combinations, which meant they could not be regarded as surprising. It also found that the new auxiliary requests did not put the appellant (opponent 2) at a disadvantage because there was essentially no change in either the closest prior art or the invention's technical contribution.

- d) Direct reaction addressing the board's objections in ex parte proceedings - admitted

In the ex parte proceedings **T. 1790/17** the board explained that, although its discretion under Art. 13(2) RPBA 2020 was rather limited, it still had to consider and balance all relevant circumstances when using its discretion. These circumstances included the development of the case and the purpose of oral proceedings. In the board's view, the **purpose of oral proceedings** was, for the appellant, to better explain its case and, for the board, to understand and clarify points which perhaps had not been sufficiently clear up to that point. The board underlined that this was particularly relevant in ex parte cases. If amendments resulting from such discussions were not possible, oral proceedings would be pointless. In the board's view, the new auxiliary request had been filed as a direct reaction to the exchange of arguments in the oral proceedings and addressed the board's objections and concerns. Furthermore, the request overcame the grounds on which the appealed decision was based. It was therefore admitted into the proceedings.

- e) Amendment shifting focus to feature that was previously optional – not admitted

In **T. 764/16** the respondent (patent proprietor) argued that the subject-matter of the auxiliary requests at issue was clearly allowable as these requests were more limited than the main request. Claim 1 now necessarily included feature 1l, which had been only optional in claim 1 of the main request. The board, however, observed that there had been no discussion of this feature in the contested decision, the proceedings at first instance having concentrated on objections relating to alternative feature 1k. Moreover, it considered the feature to require interpretation. Filing the auxiliary requests after the summons thus confronted the board and the appellant with new facts involving complex issues which, if the requests were admitted, might mean having to remit the case to the opposition division. The amendments in the auxiliary requests were therefore detrimental to procedural economy. The board did not consider the reasons put forward by the respondent to be cogent and it could not see any exceptional circumstances within the meaning of Art. 13(2) RPBA 2020 that could have justified the late filing of the auxiliary requests.

f) Requests could and should have been filed during first-instance proceedings

In T. 1421/20 the board considered that the auxiliary requests at issue (0b', 0b'-1 and 0c'), which had been filed after the board had issued the summons to oral proceedings and which contained features which had never been included in any of the claims filed and discussed before the examination division, could and should have been filed during first-instance proceedings. Moreover, the board considered that it could not deal with requests comprising such features without undue burden, since it was not even certain that appropriate prior art was readily available in the file. Exercising its discretion under Art. 13 RPBA 2020, the board decided not to admit the requests into the proceedings.

g) No "last chance" doctrine

In T. 967/16 the amendment introduced for the first time in reply to the board's provisional opinion was a feature taken from the description. The board noted that the objection the respondents (proprietors) sought to overcome had already been raised in the notice of opposition. No reasons had been provided by the respondents why the auxiliary request in question could not have been filed at earlier stages of the proceedings. On the argument that this request was the "last chance" for the respondents to save their patent, the board referred to the case law which clearly stated that there was no established "last chance" doctrine or any absolute right for a patent proprietor to such a "last chance" request. Submissions of the parties filed late in appeal proceedings, regardless of whether they were requests, facts, objections or evidence, were always subject to Art. 12 and 13 RPBA 2020 and their admissibility, including that of late-filed requests, was always a matter for the board's discretion (with reference to Case Law of the Boards of Appeal, 9th ed. 2019, V.A.4.12.7, and to T. 837/07 and T. 1624/16).

4.5.11 Criteria for discretion applied to new facts, objections, arguments and evidence

a) Late submission of new facts and evidence contrary to the principle of fair proceedings and procedural economy

In T. 1904/16 the board did not see any cogent reasons why the new facts and evidence could only have been filed at the latest possible stage of the appeal proceedings, i.e. at the oral proceedings. In the board's view, the issue raised by the new submissions should have been brought up immediately in reply to the statement of grounds of appeal. To admit these submissions into the proceedings would be against the principle of fair proceedings, since the respondent's conduct had led the appellant to believe that this objection was no longer a matter for discussion. Furthermore, it would be contrary to procedural economy, since its admission would require additional discussions, which could not be held without adjournment of the proceedings.

b) Prima facie relevance

In T. 482/18 it was not until the oral proceedings on appeal that the appellant (opponent) raised objections under Art. 123(2) and 84 EPC to a term in the claims according to the main request (identical to the auxiliary request on the basis of which the opposition division